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- (f)(~~g~~) Intergovernmental personnel act program;
- (g)(~~h~~) Land and water conservation fund program;
- (h)(~~i~~) Area development fund program;
- (i)(~~j~~) Gas system restoration project;
- (j)(~~k~~) Joint funding administration program;
- (k)(~~l~~) State clearinghouse for A-95 review;
- (l)(~~m~~) The memorandums of agreement with the area development districts to provide management assistance to local governments;
- (m)(~~n~~) The urban development office.

Approved April 3, 1984

CHAPTER 184

(S.B. 54)

AN ACT relating to the Kentucky Unified Juvenile Code.

Be it enacted by the General Assembly of the Commonwealth of Kentucky:

Section 1. Acts 1980, Chapter 280 and Acts 1982, Chapter 284 are repealed.

Section 2. It is the intent of the General Assembly that the amendments and repealers of Acts 1980, Chapter 280 not become effective and that statutes affected thereby remain as not amended or not repealed; except as affected by legislation other than Acts 1980, Chapter 280 and Acts 1982, Chapter 284 passed during the 1980, 1982, or this Act.

Approved April 3, 1984

CHAPTER 185

(S.B. 56)

AN ACT relating to elections and declaring an emergency.

Be it enacted by the General Assembly of the Commonwealth of Kentucky:

SECTION 1. A NEW SECTION OF KRS CHAPTER 118 IS CREATED TO READ AS FOLLOWS:

Each county clerk and the secretary of state shall keep a book in which he shall enter certain

information concerning candidates to be chosen by convention. Such book shall include the name, place of residence, office for which the person is a candidate, party designation, and the date of the receipt of the form required to be filed by KRS 118.325(3). Such book shall be a public record.

Section 2. KRS 21A.010 is amended to read as follows:

The Commonwealth is divided into seven (7) Supreme Court districts composed as follows:

(1) First District: Allen, Ballard, Butler, Caldwell, Calloway, Carlisle, Christian, Crittenden, Fulton, Graves, Hickman, Hopkins, Livingston, Logan, Lyon, Marshall, McCracken, McLean, Muhlenberg, Simpson, Todd, Trigg and Webster Counties.

(2) Second District: Barren, Breckinridge, Bullitt, Daviess, Edmonson, Grayson, Hancock, Hardin, Hart, Henderson, Meade, Ohio, Union and Warren Counties.

(3) Third District: Adair, [~~Anderson,~~] Bell, Casey, Clay, Clinton, Cumberland, *Estill*, *Garrard*, Green, Jackson, Knox, Larue, Laurel, *Lee*, Leslie, Lincoln, Marion, McCreary, Metcalfe, Monroe, Nelson, Owsley, Pulaski, Rockcastle, Russell, [~~Spencer,~~] Taylor, [~~Washington,~~] Wayne and Whitley Counties.

(4) Fourth District: Jefferson County.

(5) Fifth District: *Anderson*, Bourbon, Boyle, Clark, [~~Estill,~~] Fayette, Franklin, [~~Garrard,~~] Jessamine, [~~Lee,~~] Madison, Mercer, [~~Powell,~~] Scott, *Spencer*, *Washington* and Woodford Counties.

(6) Sixth District: Bath, Boone, Bracken, Campbell, Carroll, Fleming, Gallatin, Grant, Harrison, Henry, Kenton, Lewis, Mason, Nicholas, Oldham, Owen, Pendleton, Robertson, Shelby and Trimble Counties.

(7) Seventh District: Boyd, Breathitt, Carter, Elliott, Floyd, Greenup, Harlan, Johnson, Knott, Lawrence, Letcher, Magoffin, Martin, Menifee, Montgomery, Morgan, Perry, Pike, *Powell*, Rowan and Wolfe Counties.

Section 3. KRS 64.012 is amended to read as follows:

The county clerk shall receive for the following services the following fees:

Recording deed of trust or assignment for the benefit of creditors, provided the entire record thereof does not exceed three pages	\$ 5.00
Exceeding three pages, for each page	1.50
Copy and certification of same when ordered	3.50
Each bond required to be taken or prepared	
by the clerk	2.00
Copy of any bond when ordered	1.50
Recording a bond, each bond	5.00
Receiving the acknowledgment or proof of any deed, mortgage or agreement, power of attorney, or other written instrument required by law to be done and certifying same	1.25
Taking the acknowledgment or proof of a deed of real estate, certifying and recording the same and recording his own certificate, provided the entire record thereof does not exceed three pages	7.00
Exceeding three pages, for each page	1.50
Certified copy of deed	3.50
Recording a mortgage of real estate, certificates, and all services connected with the same, provided the entire record thereof does not exceed three pages	7.00
Exceeding three pages, for each page	1.50
Certified copy of real estate mortgage	3.50
Recording deed of assignment of real estate mortgage	5.00
Noting release of any lien, mortgage or redemption other than a deed of release	2.50
Receiving the acknowledgment, recording and certifying each deed of release of a mortgage or lien under KRS 382.360	5.00
Each additional marginal notation relating to same instrument	2.50
Making a record for the establishment of a city, recording the plan or plat thereof, and all other services incident	10.00
Recording survey of a city, or any part thereof, or any addition to or extensions of the boundary of a city.....	10.00

Every order concerning the establishment, changing, closing or discontinuing of roads, to be paid out of the county levy when the road is established, changed, closed or discontinued, and by the applicant when it is not	1.00
Administering an oath and certificate thereof	1.00
Issuing license for which no other fee is fixed by	
law	1.50
Marriage license, bond, certificate	
and recording	14.00
For filing and indexing an original or continuation financing statement, and noting the security interest on the required receipt for one motor vehicle	6.00
For filing and indexing an assignment of a financing statement	6.00
For filing and noting a statement of release of collateral under a financing statement	1.00
Recording real estate options, provided the entire record thereof does not exceed three pages	5.00
Exceeding three pages, for each page	1.50
Recording power of attorney or revocation of power of attorney, provided the entire record thereof does not exceed three pages	5.00
Exceeding three pages, for each page	1.50
Recording plats, maps and surveys, not exceeding 24 inches by 36 inches, per page	10.00
Recording all leases which are recordable by law, provided the entire record thereof does not exceed three pages	5.00
Exceeding three pages, for each page	1.50
Marginal notation to same instrument	2.50
Filing or recording of certification of intention to operate a business under an assumed name	5.00
Filing a lien on a delinquent motor vehicle or trailer bill	6.00
Releasing a lien on a delinquent motor vehicle or trailer bill	1.50
Filing or recording of mechanic's and artisan's liens under KRS Chapter 376	5.00
Filing or recording of notice of lien issued by the Internal Revenue Service	5.00
Filing or recording of notice of lien discharges issued by the Internal Revenue Service	5.00
Filing or recording of lis pendens notice concerning proceedings in bankruptcy and other lis pendens notices, provided the entire record thereof does not exceed three pages	5.00
Exceeding three pages, for each page	1.50
Filing or recording United States liens, provided the entire record per lien does not exceed three pages	5.00
Exceeding three pages, for each page	1.50
Filing or recording release of a United States lien, provided the entire record per lien does not exceed three pages	5.00
Exceeding three pages, for each page	1.50
Filing or recording state tax or other state liens, other than liens on delinquent motor vehicles or trailers ..	5.00
Filing release of a state tax or other state lien, other than a lien on a delinquent motor vehicle or trailer ...	5.00
Filing notification and declaration and petition of candidates for office	20.00 5.00
Recording wills or other probate documents under KRS 394.300	5.00
Issuance of fish and game licenses or tags costing more than \$1.00 each	.75
Registration of licenses for professional persons required to register with the county clerk	5.00
Recording and issuing articles, statements, or reports of corporations pursuant to KRS Chapters 271A, 272 and 273, including articles of incorporation, amendment, restatement of incorporation, merger, consolidation, or dissolution and statements of establishment of a series of shares, cancellation of a series of shares, reduction of capital, intent to dissolve, revocation of voluntary dissolution, or any other statement or report of a foreign or domestic corporation, provided the entire record thereof does not exceed three pages	5.00
Exceeding three pages, for each page	1.50
Miscellaneous recordings for which no specific fee is set, provided the entire record thereof does not exceed three pages (except military discharges)	5.00
Exceeding three pages, each additional page	1.50
Filing miscellaneous documents for which no specific fee is set, provided the entire record thereof does not exceed three pages	5.00
Exceeding three pages, each additional page	1.50
Filing certification required by KRS 65.070 (1) (a)	2.00
Certification of franchise tax assessment	2.50

Section 4. KRS 83A.170 is amended to read as follows:

(1) In any city which has under the provisions of KRS 83A.050 required nonpartisan city elections, or in any city of the second class operating under the city manager form of government pursuant to KRS 83A.150, no person shall be elected to city office except as provided in this section.

(2) No person shall be elected to city office without being nominated in the manner provided in this section at a nonpartisan primary election to be held at the time prescribed by law for primary elections generally. Nonpartisan primary elections shall be conducted by the same officers, chosen and acting in the same manner, with the same rights and duties as in regular elections.

(3) Each applicant for nomination shall, by at least *the last date prescribed by the election law generally for filing notification and declaration forms with the county clerk, [fifty-five (55) days before the primary election,]* file with the county clerk a petition signed by at least one percent (1%) of the registered voters in the city or twenty (20) voters, whichever is less. Each voter may sign a slated petition up to the number of offices to be filled for a particular position or may sign individual petitions equal to the number of offices to be filled.[;] If a voter signs petitions for more candidates than he is authorized then he shall be counted as a petitioner for the candidate whose petition is filed first. The petition shall be in the following form:

“We the undersigned, qualified voters of the City of _____ request that the name of _____ be placed before the voters of the city as that of an applicant for nomination for the office of _____ at the primary election to be held in our city on the *date prescribed by law for primary elections generally* [~~fourth Tuesday in August~~, _____]. We know the applicant to be a qualified voter of the city and a person of good character, and he is, in our judgment, qualified for the duties _____.”

The petition shall be verified by the affidavit of some person as to the genuineness of signatures and addresses of the signers. No voter shall sign more than one (1) petition with reference to each applicant. If any voter signs more than one (1) petition of an applicant, the name of that voter shall not be counted as valid on any petition.

(4) *The county clerk shall examine the petition of each candidate to determine whether it is regular on its face. If there is an error, the county clerk shall notify the candidate by certified mail within twenty-four (24) hours of filing.*

(5) Immediately upon expiration of the time for filing petitions, the county clerk shall have published in accordance with KRS Chapter 424 the names of the applicants as they will appear before the voters at the primary.

(6)[(5)] Subsection (5) [(4)] of this section shall not apply if it appears, immediately upon expiration of the time for filing petitions, that there are not more than two (2) applicants for nomination for each city office to be filled, or, when the nominations are for city legislative body members in cities electing legislative body members at large, and there are no more than twice the number of applicants for nomination for the number of offices to be filled. In that case, the applicants for nomination shall thereby be nominated and no primary election shall be held for that office.

(7) *The ballot position of a candidate shall not be changed after the ballot position has been designated by the county clerk.*

(8) *If before the time of certification provided in the election law generally, any candidate whose petition has been filed in the office of the county clerk, dies or notifies the county clerk in writing, signed and properly notarized, that he will not accept the nomination, the county clerk shall not certify his name.*

(9) *If before the ballots are printed, any candidate whose petition has been filed in the office of the county clerk dies or notifies the clerk in writing, signed and properly notarized, that he will not accept the nomination, the clerk shall not cause his name to be printed on the ballot.*

(10) *If after the ballots are printed, any candidate whose name appears thereon shall die, the county clerk shall cause his name to be blocked out or obliterated from the ballot. The clerk shall not knowingly allow the name of a deceased person to appear on the ballot.*

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(11)(6) Names of applicants for each nomination shall be placed before the voters of the city. The voters shall be instructed to vote for one candidate, except that they shall be instructed to vote for the number of legislative body members to be elected in cities nominating legislative body members at-large. No party designation or emblem of any kind, nor any sign indicating any applicant's political belief or party affiliation shall be used.

(12)(7) Persons qualified to vote at a regular election are qualified to vote at a nonpartisan primary election and the law applicable to challenges made at a regular election is applicable to challenges made at a nonpartisan primary election.

(13)(8) Votes shall be counted as provided in general election laws and the result shall be published as provided in KRS Chapter 424.

(14)(9) The two (2) applicants receiving the highest number of votes for nomination for each city office shall be nominated, or where the nominations are for city legislative body members in cities electing legislative body members at large, there shall be nominated the number of applicants receiving the highest number of votes equal to twice the number of offices to be filled.

(15) *The ballot position of a candidate shall not be changed after the ballot position has been designated by the county clerk.*

(16)(10) At the regular election following a nonpartisan primary election, the names of the successful nominees shall be placed before the voters.

(17)(11) The nominee receiving the greater number of votes cast for each city office shall be elected.

(18)(12) General election law prescribing duties of county clerks and other public officers in the conduct of elections shall be applicable in all respects to nonpartisan city elections, except no election officer or other person within a polling place shall tell or indicate to a voter, by word of mouth or otherwise, the political affiliation of any candidate for city office.

Section 5. KRS 116.145 is amended to read as follows:

(1) The fee for registration of all voters shall be paid to the county clerk by the state in the amount of twenty-five cents (25) for each person registered.

(2) ~~The amount of sixty dollars (\$60) per precinct shall be paid biennially by the state to the county board of elections in counties containing a city of the first class for the purgation of precincts.]~~

Section 6. KRS 117.025 is amended to read as follows:

(1) The state board of elections shall appoint an executive director, who shall be the chief administrative officer for the board. The board shall also appoint an assistant to the director, who shall be of a different political party than the director. The salaries of the director and his assistant shall be set by the board.

(2) The state board of elections shall employ, on a bipartisan basis, a staff sufficient to carry out the duties assigned to the board, including such legal counsel as is deemed necessary by the board.

(3) The state board shall:

(a) Maintain a complete roster of all qualified registered voters within the state by county and precinct;

(b) Delete the name of any voter who is deceased or who is no longer qualified to vote in the precinct

where currently registered as may be provided by law, or who has failed to vote at any primary or regular election for four (4) consecutive years. *Such names shall be deleted between the dates of the general and primary elections. The state board of elections shall* ~~and~~ *notify the local boards of election and the voter of such action and the reason therefor, by the tenth (10th) of the month following such action;*

(c) Enter names on the various registration rosters as they are reported by the county boards of election;

(d) Furnish each county clerk with a master list of all registered voters in the county, together with three (3) lists of all registered voters in each precinct of the county, at least five (5) days prior to each election;

(e) Maintain all information furnished to the state board relating to the inclusion or deletion of names from the rosters for four (4) years;

(f) Furnish the state central executive committee of each political party at a reasonable cost qualifying under KRS 118.015 monthly data of all additions, deletions and changes of registration in each precinct of each county and the state central executive committee shall furnish a county listing to each of the county executive committees of each political party;

(g) Purchase, lease or contract for the use of such equipment as may be necessary to properly carry out its duties under the provisions of this chapter and KRS chapters 116 and 118;

(h) Secure information from any source which may assist the board in carrying out the purposes of this section;

(i) Furnish at a reasonable price any and all precinct lists to duly qualified candidates, political party committees or officials thereof, or any committee that advocates or opposes an amendment or public question. The state board of elections may also furnish the precinct lists to other persons at the board's discretion, at a reasonable cost, provided, however the board shall not furnish precinct lists to persons who intend to use such lists for commercial use.

Section 7. KRS 117.075 is amended to read as follows:

(1) Any qualified voter who has not been declared mentally disabled by a court of competent jurisdiction, and who, on account of age, infirmity or illness, is not able to appear at the polls on election day may vote in the following manner. At least seven (7) days prior to the date of the election, he shall present to the clerk by mail or in person his verified statement that his inability to appear is due to age, infirmity, or illness, and indicating whether or not the condition is temporary, applying to the instant election only, or is expected to be a continuing one. ~~[If the condition is indicated as being continuing the voter need not file further statements of disability. For ensuing elections the voter may make reference to the statement previously filed when applying for a special ballot. The county clerk shall maintain a file of all such statements.]~~ Upon receipt of the verified statement, the clerk shall immediately mail to the voter a special ballot, and envelopes, and the voter shall cast his vote in the same manner as provided for the absent voter in KRS 117.087.

(2) Special ballots cast by disabled persons shall be tabulated in the same manner as are special ballots cast by absent voters.

(3) In case of a medical emergency within seven (7) days or less of an election, a registered voter may apply for an absentee ballot. Such application shall state that the emergency condition occurred within the seven (7) day period and must be notarized. The application form shall be restricted to the use of the voter, the voter's spouse, the voter's parents, or the voter's dependent children. *If the voter has no spouse, parents or dependent children, the application form shall be restricted to the use of the voter or the voter's brother, sister, niece or nephew.* Upon receipt of the application and verification the county clerk shall issue an absentee ballot.

Section 8. KRS 117.145 is amended to read as follows:

(1) At least two (2) days before any special election, and at least *thirty (30)* ~~fifteen (15)]~~ days before any primary or regular election, the county clerk of each county shall cause to be printed and ready for use ballot labels for each candidate who, and each question which, is entitled to be voted upon in such election. The ballot labels shall be printed on clear white paper or other material which shall be furnished by the printer.

They shall be printed in black ink, in plain, clear type clearly legible to a person with normal vision, and shall be of such size as will fit the ballot frames. The labels shall include the necessary party designations.

(2) Each county clerk shall have printed a sufficient number of special paper ballots. The special ballot shall be used for voting by absent voters; by voters so disabled by age, infirmity or illness as to be unable to appear at the polls; and for voting in an emergency situation. The ballot stubs shall be consecutively numbered and the county board shall keep a record, by number, of all special ballots used for any of the purposes listed herein.

(3) At least three (3) days before a special or regular election the county clerk shall equip the voting machines with the necessary supplies for the purpose of write-in votes. The county clerk shall also attach a pencil or pen to the voting machine for write-in purposes.

(4) If supplemental paper ballots have been approved as provided in KRS 118.215, the county clerk shall cause to be printed a sufficient number of paper ballots for the registered voters of each precinct. The paper ballots shall have stubs which are numbered consecutively. The quality of paper on which the supplemental paper ballots are printed shall be determined by regulations promulgated by the secretary ~~for the department~~ of finance and administration cabinet.

Section 9. KRS 118.115 is amended to read as follows:

Candidates for unexpired terms to be filled at a regular election shall be nominated at the primary next preceding the regular election, if the vacancy occurred not less than *one hundred five (105)* ~~seventy (70)~~ days before the primary. If the vacancy occurred less than *one hundred five (105)* ~~seventy (70)~~ days before the primary, the nomination shall be made in a manner determined by the governing authority of the political party concerned. In the preparation of ballots, candidates for full terms shall be grouped together, and candidates for unexpired terms shall be grouped together, under appropriate headings, so that the voter may easily distinguish the candidates for full terms from the candidates for unexpired terms.

Section 10. KRS 118.165 is amended to read as follows:

(1) Candidates for offices to be voted for by the electors of one county or of a district less than one county, except members of congress and members of the general assembly, shall file their nomination papers with the county clerk of the county not less than *seventy-five (75)* ~~ninety (90)~~ days before the day fixed by law for holding the primary election. Candidates for ~~all state~~ offices *to be voted for by the electors of more than one county, and for members of congress and members of the general assembly*, shall file their nomination papers with the secretary of state not less than *seventy-five (75)* ~~ninety (90)~~ days before the day fixed by law for holding the primary election.

(2) The secretary of state or the county clerk shall examine the notification and declaration form of each candidate *to determine whether it is regular on its face*. The proper officer shall notify the candidate by regular mail within twenty-four (24) hours of filing that his papers have been certified. If there is an error the officer shall notify the candidate by certified mail within twenty-four (24) hours of filing. ~~[Upon receipt of such notice, the candidate shall correct such error not later than seventy-two (72) hours after the filing deadline.]~~

Section 11. KRS 118.165 is amended to read as follows:

(1) Candidates for offices to be voted for by the electors of one county or of a district less than one county, except members of congress and members of the general assembly, shall file their nomination papers with the county clerk of the county not less than ninety (90) days before the day fixed by law for holding the primary election. Candidates for ~~all state~~ offices *to be voted for by the electors of more than one (1) county, and for members of congress and members of the general assembly*, shall file their nomination papers with the secretary of state not less than ninety (90) days before the day fixed by law for holding the primary election.

(2) The secretary of state or the county clerk shall examine the notification and declaration form of each candidate *to determine whether it is regular on its face*. The proper officer shall notify the candidate by regular mail within twenty-four (24) hours of filing that his papers have been certified. If there is an error the officer shall notify the candidate by certified mail within twenty-four (24) hours of filing. ~~[Upon receipt of such notice, the candidate shall correct such error not later than seventy-two (72) hours after the filing deadline.]~~

Section 12. KRS 118.212 is amended to read as follows:

(1) If before the time of certification provided in KRS 118.215, any candidate whose *notification and declaration* or certificate or petition of nomination has been filed in the office of the secretary of state *dies* or notifies the secretary of state in writing, signed and properly notarized that he will not accept the nomination or election, the secretary of state shall not certify his name.

(2) If before the ballots are printed, any candidate whose *notification and declaration* or certificate or petition of nomination has been filed in the office of the county clerk *dies* or notifies the clerk, in the manner described in subsection (1) of this section, that he will not accept the nomination or election, the clerk shall not cause his name to be printed on the ballot.

(3) *If after the ballots are printed, any candidate whose name appears thereon shall die, the county clerk shall cause his name to be blocked out or obliterated from the ballot. The clerk shall not knowingly allow the name of a deceased person to appear on an election ballot.*

Section 13. KRS 118.215 is amended to read as follows:

(1) Not less than *eighty (80)* [~~forty-five (45)~~] days before a primary or *sixty (60) days* before a regular election is to be held, and after the order of the names has been determined as provided in KRS 118.225, the secretary of state shall certify, to the county clerks of the respective counties entitled to participate in the nomination or election of the respective candidates, the name, place of residence and party of each candidate for each office, as specified in the nomination papers or certificates and petitions of nomination filed with him, and shall designate the device *with [under]* which the candidate groups or lists of candidates of each party shall be printed, in the order in which they are to appear on the ballot, with precedence to be given to the party that polled the highest number of votes at the preceding election for presidential electors, followed by the political party which received the second highest number of votes with the order of any other political parties and independents to be determined by lot. Candidates for county offices and local state offices shall be listed in the following order: commonwealth's attorney, circuit clerk, property valuation administrator, county judge/executive, county attorney, county clerk, sheriff, jailer, county commissioner, coroner, justice of the peace and constable. The names of candidates for president and vice president shall be certified in lieu of certifying the names of the candidates for presidential electors.

(2) All independent candidates whose nominating petitions are filed with the county clerk shall be *designated by [listed under]* the word "independent," *and shall be placed on the ballot in a separate [one] column or columns or in a separate line or lines* according to the office which they seek. The order in which independent candidates shall appear on the ballot shall be determined by lot by the county clerk. If the same device is selected by two groups of petitioners, it shall be given to the first selecting it and the county clerk shall permit the other group to select a suitable device. This section does not apply to candidates for municipal offices which comes under subsection (3) of this section.

(3) The ballots used at any election in which city officers are to be elected as provided in subsection (2) of this section shall contain the names of candidates for such city offices grouped according to the offices they seek, and such candidates shall be immediately arranged *with and designated by [under and beneath]* the title of office such candidates seek. The order in which the names of the candidates for each office are to be printed on the ballot shall be determined by lot. Each group of candidates for each separate office for which such candidates are to be elected shall be *clearly* separated from *other [the preceding or succeeding]* groups on *[by a line transversing]* the *[entire]* ballot and spaced so as to avoid confusion on the part of the voter.

(4) The secretary of state shall not knowingly certify to the county clerk of any county the name of any candidate who has not filed the required nomination papers, nor knowingly fail to certify the name of any candidate who has filed the required nomination papers.

(5) If the county clerk determines that the number of certified candidates cannot be placed on a ballot which can be accommodated by the voting machines currently in use by the county, he shall so notify the state board of elections not less than *sixty (60)* [~~35~~] days before the primary or *forty (40) days* before the general election. The state board of elections shall meet within 5 days of such notice, review the ballot conditions and determine whether or not supplemental paper ballots are necessary for the election. Upon approval of the state board of elections, supplemental paper ballots may be used for nonpartisan candidates for an office or offices and public questions submitted for a yes or no vote, provided that all candidates for any particular office shall be placed either on the machine ballot or on the paper ballot.

(6) The ballot position of a candidate shall not be changed after the ballot position has been designated by the county clerk.

Section 14. KRS 118.225 is amended to read as follows:

(1) For the purpose of determining the order in which the names of candidates to be voted for by the electors of the entire state shall be certified and printed on the ballots ~~with~~ ~~under~~ the designation of the respective offices, the secretary of state shall prepare lists of the counties of each congressional district of the state. He shall then arrange the surnames of all candidates for each office in alphabetical order for the first congressional district, and the names shall be certified in this order to the county clerks of all the counties comprising that district. For each succeeding congressional district, taken in numerical order, the name appearing first for each office in the last preceding district shall be placed last, and the name appearing second in the last preceding district shall be placed first, and each other name shall be moved up one (1) place. The lists shall be certified accordingly.

(2) For all other offices for which nomination papers and petitions are filed with the secretary of state, the order of names of candidates for each office shall be determined by lot at a public drawing to be held in the office of the secretary of state at 2:00 p.m., standard time, *eighty-eight (88) [fifty-three (53)]* days before the primary ~~or general~~ election *or sixty-eight (68) days before the general election.*

(3) For all offices for which nomination papers and petitions are filed in the office of the county clerk, the order in which the names of candidates for each office are to be printed on the ballot shall be determined by lot at a public drawing in the office of the county clerk at 2:00 p.m., standard time, *eighty-eight (88) [fifty-three (53)]* days before the primary ~~or general~~ election *or sixty-eight (68) days before the general election.*

(4) If the number of certified candidates cannot be placed on a ballot which can be accommodated on voting machines currently in use in the county, the county clerk shall notify the state board of elections, as provided in KRS 118.215.

Section 15. KRS 118.245 is amended to read as follows:

The candidate receiving the highest number of votes in a primary election for the office for which he is a candidate shall be the nominee of his party for that office and shall receive the certificate of nomination. If two (2) or more persons are found to have received the highest and an equal number of votes for nomination to the same office, the election shall be determined by lot in such manner as the board directs, in the presence of not less than three (3) other persons. ~~[This section does not apply to presidential primaries.]~~

Section 16. KRS 118.305 is amended to read as follows:

(1) Except as provided in KRS 118.345, and subject to the provisions of subsections (2) and (3) of this section, the county clerk of each county shall cause to be printed for the voting machines and on the special ballots for the regular election the names of the following persons:

(a) Candidates of a political party, as defined in KRS 118.015, who have received certificates of nomination at the preceding primary election, or certificates of nomination under KRS 118.185, and whose certificates of nomination have been filed with the secretary of state or the appropriate county clerk.

(b) Candidates of a political party, as defined in KRS 118.015, who have been nominated for an unexpired term in a manner determined by the governing authority of the party, as provided in KRS 118.115, and whose evidences of nomination have been filed with the secretary of state or the appropriate county clerk within the time prescribed in this chapter.

(c) Candidates of a political party, as defined in KRS 118.015, who have been nominated by the governing authority of the party to fill a vacancy in the candidacy of a person nominated at the preceding primary election, as provided in KRS 118.105, and whose certificates of nomination have been filed with the secretary of state or the appropriate county clerk, *by at least the date provided by the election law generally for such filing [fifty-five (55) days before the regular election].*

(d) Candidates who have been nominated by a political organization as provided in KRS 118.325 and whose certificates or petitions of nomination have been filed with the secretary of state or the appropriate county clerk within the time prescribed in this chapter.

(e) Independent candidates who have been nominated by petition as provided in KRS 118.315, and whose petitions of nomination have been filed with the secretary of state or the appropriate county clerk within the time prescribed in this chapter.

(f) Where a vacancy in a candidacy occasioned by the death, removal or resignation of a candidate before the election and after the ballot labels have been prepared is filled by the chairman of the state, district or county political organization as provided by law, the chairman shall furnish to the county clerk a sufficient number of printed ballot labels bearing the name of the new candidate to replace those bearing the name of the candidate with respect to which the vacancy has occurred. If such ballot labels are furnished to the clerk before the machines are delivered to the election precincts, the clerk shall cause them to be inserted in the proper ballot frames. If they are furnished after the machines have been delivered to the election precincts, the county clerk shall cause the ballot labels to be delivered to the clerk of each precinct, with directions as to insertion in the proper ballot frames.

(g) Candidates for president and vice-president of the United States, of those political parties and organizations who have nominated presidential electors as provided in KRS 118.325, where the certificate of nomination of such electors has been filed with the secretary of state within the time prescribed in this chapter.

(h) Candidates for soil and water district supervisors who have been nominated by petition as provided in KRS 262.210.

(2) Candidates for members of boards of education shall have their names printed on ballot labels and special ballots for the regular election only after filing as provided in KRS 160.220.

(3) Except as provided in KRS 118.105 and 118.115, the name of no candidate shall be printed upon the ballot labels and special ballots for any regular election as the nominee of any political party, as defined in KRS 118.015, or under the emblem of any political party, as so defined, except those candidates who have been duly and regularly nominated as nominees of that party at a primary election held as provided in this chapter.

(4) No county clerk shall knowingly cause to be printed, upon the ballot labels or special ballot for any regular election, the name of any candidate of a political party, as defined in KRS 118.015, who has not been nominated in the manner provided in the primary election laws.

(5) The names of candidates for president and vice-president shall be certified in lieu of certifying the names of the candidates for presidential electors.

(6) Whenever a vacancy occurs in an elective office which is required by law to be filled temporarily by appointment, the officer or body designated by law to make the appointment, or in the case of an office to be filled by appointment from a list of nominations, the officer or body designated by law to make the nominations, shall immediately notify in writing both the county clerk and secretary of state of the vacancy.

Section 17. KRS 118.315 is amended to read as follows:

(1) A candidate for any office to be voted for at any regular election may be nominated by a petition of electors qualified to vote for him, complying with the provision of subsection (2) of this section.

(2) A petition of nomination for a state officer, or any officer for whom all the electors of the state are entitled to vote, shall contain five thousand (5,000) petitioners; for a representative in congress from any congressional district, or for any officer from any other district except as herein provided, four hundred (400) petitioners; for a county officer or member of the general assembly, one hundred (100) petitioners; for a soil and water conservation district supervisor, twenty-five (25) petitioners; for an officer of a precinct or ward, or other division less than a county except as herein provided, twenty (20) petitioners. The signatures of the petition need not be appended to one (1) paper. No petitioner shall be counted unless his residence, social security number and post-office address are designated. If any person joins in nominating, by petition, more than one (1) nominee for any office to be filled, he shall be counted as a petitioner for the candidate whose petition is filed first, except a petitioner for the nomination of candidates for soil and water conservation district supervisors may be counted for every petition to which his signature is affixed. The petition shall state the name and residence of each of the candidates, the name of the office for which he is running, the district, if applicable, from which he is running, that he is legally qualified to hold the office, and that the subscribers

desire, and are legally qualified, to vote for the candidate. The petition shall designate a brief name or title of the party or principle that the candidate represents, together with any simple figure or device by which it is desired that he be designated on the voting machines. This does not apply to municipal and school board races.

(3) Titles, ranks or spurious phrases shall not be accepted on the filing papers and shall not be printed on the ballots as part of the candidate's name; however, nicknames, initials and contractions of given names may be accepted as the candidate's name.

(4) *The secretary of state and county clerks shall examine the petitions of all candidates who file with them to determine whether each petition is regular on its face. If there is an error, the secretary of state or the county clerk shall notify the candidate by certified mail within twenty-four (24) hours of filing.*

(5) The state board of elections shall prescribe the forms for the petition.

Section 18. KRS 118.325 is amended to read as follows:

(1) Any political organization not constituting a political party within the meaning of KRS 118.015 but which cast two percent (2%) of the vote of the state at the last preceding election for presidential electors may nominate, by a convention or primary election held by the party in accordance with its constitution and bylaws, candidates for any offices to be voted for at any regular election, except the office of member of a board of education, for which nominations shall be made as provided in KRS 160.220. Any political party, as defined in KRS 118.015, may nominate candidates for members of the legislative bodies of cities of the fifth and sixth classes in the same manner. Any political party, as defined in KRS 118.015, and any political organization not constituting such a political party but which cast two percent (2%) of the vote of the state at the last preceding election for presidential electors, may nominate, by a convention or primary election held by the party or organization in accordance with its constitution and bylaws, as many electors of president and vice president of the United States as this state is entitled to elect.

(2) The certificate of nomination by such a convention or primary election shall be in writing, shall contain the name of each person nominated, his residence and the office to which he is nominated, and shall designate a title for the party or principle that such convention or primary election represents, together with any simple figure or device by which its list of candidates may be designated on the voting machines. The certificate shall be signed by the presiding officer and secretary of the convention, or by the chairman and secretary of the county, city or district committee, who shall add to their signatures their respective places of residence, and acknowledge the same before an officer duly authorized to administer oaths. A certificate of the acknowledgment shall be appended to the certificate of nomination. In the case of electors of president and vice president of the United States the certificate of nomination shall state the names of the candidates of the party for president and vice president.

(3) *Any person desiring to become a candidate for an office, the nomination to which is to be made by a convention pursuant to subsections (1) and (2) of this section, except for the office of elector of president and vice-president of the United States, shall file a statement with the official designated in KRS 118.165 with whom notification and declaration forms are filed for the office. The statement shall be prescribed by the state board of elections to be subscribed and sworn to by the person making it, before an officer authorized to administer an oath, such form to include the name, place of residence, and the party and office for which he desires to become a candidate. Such statement shall be subscribed and sworn to by the person making it before an officer authorized to administer an oath. Such statement shall be filed as prescribed by KRS 118.365.*

(4) If the certificate of nomination of any state convention requests that the figure or device selected by such convention be used to designate the candidates of such party on the voting machines for all elections throughout the state, that figure or device shall be used until changed by request of a subsequent state convention of the same party. The device may be any appropriate symbol other than the coat of arms or seal of this state or of the United States, the national flag, or any other emblem common to the people at large.

(5)[(4)] In case of death, resignation or removal of any such candidate subsequent to nomination and before the ballot labels are printed, the chairman of the state, county or city district committee shall fill the vacancy, unless a supplemental certificate or petition of nomination is filed. In the case of electors of president and vice president of the United States, a vacancy may be filled by the chairman of the state committee at any time before the meeting of the electors, whether the vacancy occurs before or after the election.

~~(6)(5)~~ If any political party entitled to nominate by convention fails to do so, the names of all nominees by petition for any office who are designated in their petition as members and candidates of that party shall be printed under the device and title on the voting machines as if nominated by a convention. If two (2) or more persons who have filed certificates of nomination under this section claim to be the nominee of the same political party, the governing authority of that party shall designate to the secretary of state and county clerk, in writing, which of the candidates is entitled to the party emblem. If there are two (2) or more contending executive committees of the same party in the county or district, the county or district executive committee that is recognized by the state governing authority of the party, by the written certificate of its chairman, shall be recognized by the secretary of state and county clerk.

Section 19. KRS 118.345 is amended to read as follows:

(1) No candidate who has been defeated for the nomination for any office in a primary election shall have his name placed on voting machines in the succeeding regular election as a candidate for the same office for the nomination to which he was a candidate in the primary election, except that if a vacancy occurs in the party nomination for which he was a candidate in the primary election his name may be placed on voting machines for the regular election as a candidate of that party if he has been duly made such party nominee after the vacancy occurs as provided in KRS 118.105.

(2) No person who was a candidate for nomination for any office in a primary election and who, before the succeeding regular election, is declared by the judgment of any court of competent jurisdiction to have violated, in the primary election, any provision of KRS chapter 121, or to be responsible for such violation by others, shall have his name placed on voting machines for any office to be voted for in the succeeding regular election.

~~[(3) This section does not apply to presidential preference primary candidates.]~~

Section 20. KRS 118.365 is amended to read as follows:

(1) Certificates of nomination issued by the state board of elections shall be filed by that board with the secretary of state immediately. Such certificates issued by the county board of elections shall be filed by that board with the county clerk immediately.

(2) Certificates of nomination made by the governing authority of a party to fill vacancies in office, as provided in KRS 118.115, shall, ~~[when required to be filed with the secretary of state,]~~ be filed as required with the secretary of state or county clerk not less than seventy (70) ~~[fifty-five (55)]~~ days before the day fixed by law for the election of the person in nomination. ~~[When required to be filed with the county clerk, they shall be filed not less than fifty-five (55) days before the day fixed by law for the election of the person in nomination.]~~

(3) Petitions and certificates of nomination ~~shall~~, ~~when required to~~ be filed as required with the secretary of state or county clerk, ~~shall be filed~~ not less than seventy (70) ~~[fifty-five (55)]~~ days before the day fixed by law for the holding of regular elections. ~~[When required to be filed with the county clerk, they shall be filed not less than fifty-five (55) days before the day fixed by law for holding of regular elections.]~~

(4) Petitions and certificates of nomination for electors of president and vice president of the United States shall be filed with the secretary of state not less than seventy (70) ~~[fifty-five (55)]~~ days prior to the date fixed by law for the election of such electors.

Section 21. KRS 118.365 is amended to read as follows:

(1) Certificates of nomination issued by the state board of elections shall be filed by that board with the secretary of state immediately. Such certificates issued by the county board of elections shall be filed by that board with the county clerk immediately.

(2) *Petitions of nomination for candidates to offices which are prohibited from utilizing a primary shall be filed with the county clerk not less than seventy (70) days before the day fixed by law for the holding of regular elections.*

(3) *Statements of candidates for an office, the nomination to which is to be made by a convention pursuant to KRS 118.325(1) and (2), except for the office of electors of president and vice-president of the United States, shall file such statements as are required by KRS 118.325(3), with the official designated in*

KRS 118.165 with whom notification and declaration are filed for the office, not less than the date provided by the election laws generally for filing notification and declaration forms.

(4) Certificates of nomination made by the governing authority of a political party within the meaning of KRS 118.015 or a political organization not constituting a political party within the meaning of KRS 118.015 but which cast two percent (2%) of the vote of the state at the last preceding election for presidential electors to fill vacancies in office, as provided in KRS 118.115 and KRS 118.325, shall, when required to be filed with the secretary of state, be filed as required with the secretary of state or county clerk not less than seventy (70) [fifty-five (55)] days before the day fixed by law for the election of the person in nomination. [When required to be filed with the county clerk, they shall be filed not less than fifty-five (55) days before the day fixed by law for the election of the person in nomination:] (5) Petitions of independent candidates to fill a vacancy which has occurred less than the number of days prior to a primary as provided in KRS 118.375 and prior to seventy (70) days before the general election, shall be filed by such petitions not later than seventy (70) days prior to the general election.

(6)[(3)] Petitions [and certificates] of nomination shall, when required to be filed as required with the secretary of state or county clerk, shall be filed not less than ninety (90) [fifty-five (55)] days before the day fixed by law for the holding of primary [regular] elections. Certificates of nomination shall be filed with the secretary of state or county clerk, as required by law, not less than seventy (70) days before the day [When required to be filed with the county clerk, they shall be filed not less than fifty-five (55) days before the day] fixed by law for the holding of general [regular] elections.

(7)[(4)] Petitions and certificates of nomination for electors of president and vice president of the United States shall be filed with the secretary of state not less than seventy (70) [fifty-five (55)] days prior to the date fixed by law for the election of such electors.

Section 22. KRS 118.375 is amended to read as follows:

Where a vacancy occurs in any elective office less than one hundred five (105) [seventy (70)] days before the primary or at any time after the primary, but not less than three (3) months before the general election, independent candidates may file their petitions at the time and place provided for in KRS 118.365.

Section 23. KRS 118.415 is amended to read as follows:

(1) When [Whenever] an amendment to the constitution has been proposed by the general assembly, the secretary of state shall cause the text of the proposed amendment to be published at least two (2) times in two (2) newspapers of general circulation published in this state, and shall also cause to be published at the same time and in the same manner the fact that the amendment will be submitted to the voters for their acceptance or rejection at the next regular election at which members of the general assembly are to be voted for. The publication shall be made at least one hundred (100) [ninety (90)] days preceding the election at which the amendment is to be voted on.

(2) The attorney general shall state the substance of the amendment in the form of a question in a manner calculated to inform the electorate of the substance of the amendment, and shall certify the question to the state board of elections to be placed on the voting machine. The state board of elections, not less than seventy (70) [forty-five (45)] days before the next regular election at which members of the general assembly are to be chosen, shall certify the substance of the amendment, as stated and certified by the attorney general, to the county clerk of each county, and the county clerk shall have the substance of the amendment, as so certified, indicated on the voting machines.

(3) The votes cast for and against the amendment shall be counted, canvassed and certified to the state board of elections in the same manner as the votes cast for any officer elective by the votes of the whole state. If a majority of the votes cast on the question are for the amendment, it shall become a part of the constitution.

(4) The expenses of the publications provided for in this section shall be paid as are the expenses of other publications that the secretary of state is required to make in connection with elections.

Section 24. KRS 118.425 is amended to read as follows:

(1) The state board of elections shall issue certificates of election where the successful candidate was voted for by the state at large or by a district greater than one (1) county, or was a candidate for member of

Congress or the general assembly.

(2) The county board of elections shall issue certificates of election where the successful candidate was voted for by the electors of one (1) county, or of a district less than one (1) county, except members of Congress, members of the general assembly and designated officers filing with the state board of elections. The board shall forward the certificate to the elected candidate. If the board finds that two (2) or more candidates have received the highest and equal number of votes for the same office, the board shall determine by lot which of the candidates is elected.

(3) In the case of *all* offices voted for [~~by the state at large or by a district greater than one (1) county; and for members of Congress and members of the general assembly~~], and in the case of public questions submitted to the vote of the people of the state at large or of a district greater than one (1) county, the county board of elections shall make out duplicate certificates of the total number of votes received by each of the candidates for such office and the total number of votes for and against each of such questions. The clerk shall keep one (1) of the certificates in his office. He shall not later than three (3) days after receiving such certificate from the board, forward the other certificate by mail to the secretary of state who shall deliver it to the state board of elections.

(4) The state board of elections shall meet, to count and tabulate the votes received by the different candidates as certified to the secretary of state, when the returns are all in, or on the second Monday after the election whether they are in or not, but if all the returns are not made, the right to contest an election shall not be impaired. Any two (2) of the members of the board may act in the absence of the third. The board shall make out the certificates of election in the office of the board, from the returns made. The board shall make out duplicate certificates of election, in writing, over the signatures of its members. The board shall forward the original certificate, by mail, to the elected candidate. The duplicate shall be retained in the office of the board. In the case of the election of a representative in Congress, an additional certificate shall be made and sent, by mail, to the clerk of the house of representatives.

(5) The certificate of election shall be issued to the candidate receiving the highest number of votes in the territory from which the election is to be made. If two (2) or more persons are found to have received the highest and an equal number of votes for the same office, the election shall be determined by lot in such manner as the board directs, in the presence of not less than three (3) other persons. In the case of elections for electors of president and vice president of the United States, the board shall issue a certificate of election to each elector of the political party or organization whose candidates for president and vice president received the highest number of votes and the determination by the board that the candidates of any political party or organization for president and vice president have received the highest number of votes shall constitute a determination that the electors nominated by that party have been elected.

Section 25. KRS 118A.060 is amended to read as follows:

(1) Except as provided in KRS 118A.100 and 118A.110, no person's name shall appear on a ballot label or special ballot for an office of the Court of Justice without first having been nominated as provided in this section.

(2) Each candidate for nomination shall file a petition for nomination with the secretary of state not less than *ninety (90)* [~~fifty-five (55)~~] days before the day fixed by law for holding the primary election.

(3) The petition for nomination shall state the name and residence of the candidate and shall describe, by district or circuit, and by numbered division thereof if divisions exist, the office for which he seeks nomination. It shall be signed by him and by not less than two (2) registered voters from the district or circuit from which he seeks nomination. The petition shall be in the form prescribed by the state board of elections. Titles, ranks or spurious phrases shall not be accepted on the petition and shall not be printed on the ballots as part of the candidate's name; however, nicknames, initials and contractions of given names may be acceptable as the candidate's name.

(4) *The secretary of state shall examine the petition of each candidate to determine whether it is regular on its face. If there is an error, the secretary of state shall notify the candidate by certified mail within twenty-four (24) hours of filing.* The order of names on the ballot for each district or circuit, and numbered division thereof if divisions exist, shall be determined by lot at a public drawing to be held in the office of the secretary of state at 2:00 p.m., standard time, *eighty-eight (88)* [~~fifty-three (53)~~] days before the primary election.

(5) *If before the time of certification provided in subsection (6) of this section, any candidate whose petition of nomination has been filed in the office of the secretary of state, dies or notifies the secretary of state in writing, signed and properly notarized, that he will not accept the nomination, the secretary of state shall not certify his name.*

(6) Not less than *eighty (80)* ~~[forty-five (45)]~~ days before the primary election, and after the order of names on the ballot has been determined as required in subsection (4), the secretary of state shall:

(a) Certify to the county clerks of the respective counties entitled to participate in the election of the various candidates, the name and place of residence of each candidate for each office, by district or circuit, and numbered division thereof if divisions exist, as specified in the petitions for nomination filed with him; and

(b) Designate for the county clerks the office of the Court of Justice ~~with [under]~~ which the names of candidates shall be printed and the order in which they are to appear on the ballot.

(7) *The ballot position of a candidate shall not be changed after the ballot position has been designated by the county clerk.*

(8)~~(6)~~ The county clerks of each county shall cause to be printed on the ballot labels for the voting machines and on the special ballots for the primary the names of the candidates for offices in the Court of Justice.

(9) *If before the ballots are printed, any candidate whose certificate of nomination has been filed dies or notifies the county clerk in writing, signed and properly notarized that he will not accept the nomination, the county clerk shall not cause his name to be printed on the ballot.*

(10) *If after the ballots are printed, any candidate whose name appears thereon shall die, the county clerk shall cause his name to be blocked out or obliterated from the ballot. The clerk shall not knowingly allow the name of a deceased person to appear on an election ballot.*

(11)~~(7)~~ The names of the candidates shall be placed on the voting machine in a separate column or columns or in a separate line or lines and identified ~~[headed or preceded]~~ by the words "Judicial Ballot." ~~[Above the names of candidates for nomination shall be printed]~~ The words "Vote for one," or "Vote for one in each division," *shall be printed on the ballot in an [as] appropriate location.* The office, numbered division thereof if divisions exist, and the candidates therefor shall be clearly labelled. No party designation or emblem of any kind, nor any sign indicating any candidate's political belief or party affiliation, shall be used on voting machines or special ballots.

(12)~~(8)~~ The two (2) candidates receiving the highest number of votes for nomination for justice or judge of a district or circuit, or numbered division thereof if divisions exist, shall be nominated. Certificates of nomination shall be issued as provided in KRS 118A.190.

(13)~~(9)~~ If it appears after expiration of the time for filing petitions for nomination that there are not more than two (2) candidates who have filed the necessary petitions for a place on the ballot in the regular election, the secretary of state shall immediately issue and file in his office certificates of nomination, and send copies to the candidates.

Section 26. KRS 118A.090 is amended to read as follows:

(1) For the regular election, the order of names on the ballot for each district or circuit, and numbered division thereof if divisions exist, shall be determined by lot at a public drawing to be held in the office of the secretary of state at 2:00 p.m., standard time, *sixty-eight (68)* ~~[fifty-three (53)]~~ days before the regular election.

(2) *If before the time of certification provided in subsection (3) of this section, any candidate whose certificate of nomination has been filed in the office of the secretary of state, dies or notifies the secretary of state in writing, signed and properly notarized, that he will not accept the election, the secretary of state shall not certify his name.*

(3) Not less than *sixty (60)* ~~[forty-five (45)]~~ days before the regular election, and after the order of names on the ballot has been determined as required in subsection (1), the secretary of state shall:

(a) Certify to the county clerks of the respective counties entitled to participate in the election of the various candidates, the name and place of residence of each candidate for each office, by district or circuit, and numbered division thereof if divisions exist, as certified under KRS 118A.060; and

(b) Designate for the county clerks the office of the Court of Justice ~~with~~ ~~[under]~~ which the names of candidates shall be printed and the order in which they are to appear on the ballot.

~~(4)[(3)]~~ The ballot position of a candidate shall not be changed after the ballot position has been designated by the county clerk. The county clerks of each county shall cause to be printed on the ballot labels for the voting machines and on the special ballots for the regular elections the names of the candidates for offices of the Court of Justice.

(5) If before the ballots are printed, any candidate whose certificate of nomination has been filed dies or notifies the county clerk in writing, signed and properly notarized that he will not accept the election, the county clerk shall not cause his name to be printed on the ballot.

(6) If after the ballots are printed, any candidate whose name appears thereon shall die, the county clerk shall cause his name to be blocked out or obliterated from the ballot. The clerk shall not knowingly allow the name of a deceased person to appear on an election ballot.

~~(7)[(4)]~~ The names of the candidates shall be placed on the voting machine in a separate column or columns or in a separate line or lines and identified ~~[headed or preceded]~~ by the words "Judicial Ballot," and in such a manner that the casting of a vote for all of the candidates of a political party will not operate to cast a vote for judicial candidates. ~~[Above the names of the candidates shall be printed]~~ The words "Vote for one" or "Vote for one in each division," shall be printed on the ballot in an ~~[as]~~ appropriate location. The office, numbered division thereof if divisions exist, and the candidates therefor shall be clearly labelled. No party designation or emblem of any kind, nor any sign indicating any candidate's political belief or party affiliation, shall be used on voting machines or special ballots.

~~(8)[(5)]~~ The candidate receiving the highest number of votes cast at the regular election for a district or circuit, or for a numbered division thereof if divisions exist, shall be elected.

Section 27. KRS 118A.100 is amended to read as follows:

(1) Candidates for an unexpired term of a judicial office to be filled at a regular election shall be nominated at the primary next preceding the regular election in the manner prescribed in KRS 118A.060 if the vacancy occurs not less than *one hundred five (105)* ~~[seventy (70)]~~ days before the primary. If the vacancy occurs on or after the *one hundred fifth* ~~[seventieth]~~ day before the primary, the election to fill the unexpired term shall be held in accordance with the procedures described in this section and section 152 of the Constitution of Kentucky.

(2) If in a regular election for judicial office no candidates nominated as provided in KRS 118A.060 are available due to death, incapacity or withdrawal, *and such candidates have not been replaced as provided in KRS 118A.060*, the election to fill the regular term shall be conducted in the manner prescribed in subsections (3) through *(10)* ~~[(9)]~~ of this section.

(3) Each candidate shall file a petition for candidacy with the secretary of state at least *seventy (70)* ~~[fifty-five (55)]~~ days before the day fixed by law for holding the regular election.

(4) The petition for candidacy shall state the name and residence of the candidate and shall describe by district or circuit, and numbered division thereof if divisions exist, the judicial office for which he seeks election. It shall be signed by him and not less than two (2) registered voters from the district or circuit from which he seeks candidacy. The petition shall be in the form prescribed by the state board of elections. Titles, ranks or spurious phrases shall not be accepted on the petition and shall not be printed on the ballots as part of the candidate's name; however, nicknames, initials and contractions of given names may be acceptable as the candidate's name.

(5) The secretary of state shall examine the petition of each candidate to determine whether it is regular on its face. If there is an error, the secretary of state shall notify the candidate by certified mail within twenty-four (24) hours of filing.

(6) The order of names on the ballot for each district or circuit, and numbered division thereof if divisions exist, shall be determined by lot at a public drawing to be held in the office of the secretary of state at 2:00 p.m., standard time, *sixty-eight (68) [fifty-three (53)]* days before the regular election.

(7) *If before the time of certification provided in subsection (8) of this section, any candidate whose petition for candidacy has been filed in the office of the secretary of state, dies or notifies the secretary of state in writing, signed and properly notarized, that he will not accept the election, the secretary of state shall not certify his name.*

(8)[(6)] Not less than *sixty (60) [forty-five (45)]* days before the regular election, and after the order of names on the ballot has been determined as required in subsection (6) [(5)], the secretary of state shall:

(a) Certify to the county clerks of the respective counties entitled to participate in the election of the various candidates, the name and place of residence of each candidate for each office, by district or circuit, and numbered division thereof if divisions exist, as specified in the petitions for candidacy filed with him; and

(b) Designate for the county clerks the office of the Court of Justice *with [under]* which the names of candidates shall be printed and the order in which they are to appear on the ballot.

(9) *The ballot position of a candidate shall not be changed after the ballot position has been designated by the county clerk.*

(10)[(7)] The county clerks of each county shall cause to be printed on the ballot labels for the voting machines and on the special ballots for the regular election the names of the candidates for offices of the Court of Justice.

(11) *If before the ballots are printed, any candidate whose petition for candidacy has been filed dies or notifies the county clerk in writing, signed and properly notarized that he will not accept the election, the county clerk shall not cause his name to be printed on the ballot.*

(12) *If after the ballots are printed, any candidate whose name appears thereon shall die, the county clerk shall cause his name to be blocked out or obliterated from the ballot. The clerk shall not knowingly allow the name of a deceased person to appear on an election ballot.*

(13)[(8)] The names of the candidates shall be placed on the voting machine in a separate column or columns or in a separate line or lines and identified ~~[headed or preceded]~~ by the words "Judicial Ballot," and in such a manner that the casting of a vote for all of the candidates of a political party will not operate to cast a vote for judicial candidates. ~~[Above the names of the candidates shall be printed]~~ The words "Vote for one" or "Vote for one in each division," *shall be printed on the [as] appropriate location.* The office, numbered division thereof if divisions exist, and the candidates therefor shall be clearly labelled. No party designation or emblem of any kind, nor any sign indicating any candidate's political belief or party affiliation, shall be used on voting machines or special ballots.

(14)[(9)] The candidate receiving the highest number of votes cast at the regular election for a district or circuit, or for a numbered division thereof if divisions exist, shall be elected.

Section 28. KRS 118A.110 is amended to read as follows:

The initial election of judges to the Court of Appeals shall be conducted in the regular election of 1976 without a primary election and in the manner prescribed in subsections (3) through (12) [(9)] of KRS 118A.100.

Section 29. KRS 262.210 is amended to read as follows:

No less than *seventy (70) [fifty-five (55)]* days before the day fixed by law for holding of regular elections, nominating petitions *shall [may]* be filed with the clerk of the county in which the district lies to nominate candidates for supervisors of the district. Each nominating petition shall be subscribed by twenty-five (25) or more qualified voters who are residents of the territory to be encompassed by the district. Resident qualified voters may join in nominating by petition more than one candidate for supervisor. The nominating petition shall state the residence and post-office address of each candidate, that he is legally

qualified to hold the office, and that the subscribers desire, and are legally qualified, to vote for the candidate. The county clerk shall certify the nomination and election of supervisors to the commission.

Section 30. KRS 262.240 is amended to read as follows:

(1) A supervisor's term begins on January 1 following his election. The two (2) supervisors elected in the general election of 1974 shall be elected for a term of two (2) years. In 1976 a general election shall be conducted for seven (7) supervisors. The four (4) supervisors elected with the highest number of votes in the general election of 1976 shall serve for four (4) years; the other three (3) supervisors elected in 1976 shall serve for two (2) years. In the event only seven (7) nominating petitions for supervisors are filed, the commission shall declare the nominees elected without an election, and shall name four (4) of the nominees to serve terms of four (4) years, and three (3) to serve terms of two (2) years. Thereafter supervisors shall be elected for four (4) years as their terms expire. Nominating petitions for supervisors shall be filed with the county clerk not later [less] than the last date prescribed by the election law generally for filing certificates and petitions of nomination [fifty-five (55) days prior to the day of the election]. No such nominating petition shall be accepted by the clerk unless it is signed by twenty-five (25) or more qualified resident voters of the district. Qualified resident voters may sign more than one (1) nominating petition to nominate more than one (1) candidate for supervisor. In the event nominating petitions for only the number of supervisors to be elected are filed, the commission shall declare the nominees elected without holding an election. *The county clerk shall examine the petition of each candidate to determine whether it is regular on its face. If there is an error, the county clerk shall notify the candidate by certified mail within twenty-four (24) hours of filing.*

(2) A supervisor shall hold office until his successor has been elected and has qualified. Vacancies shall be filled for the unexpired term by appointment by the commission.

(3) A supervisor may be reimbursed for expenses necessarily incurred in the discharge of his duties and may be paid a per diem for attending meetings or otherwise discharging the obligations of his office.

(4) A supervisor shall be a resident of the county or district in which he serves as a supervisor, and upon moving from the county or district, the supervisor shall be ineligible to serve as a supervisor and his office shall be vacant.

(5) A supervisor who has been declared elected without an election pursuant to subsection (1) of this section may be removed from office by the commission in the same manner as provided by KRS 65.007 for removal of an appointed member of the governing body of a special district.

Section 31. KRS 6.031 is amended to read as follows:

The Commonwealth of Kentucky is divided into representative districts as follows:

(1) First District: Ballard, Carlisle, Fulton, and Hickman Counties and that part of McCracken County contained in the election precincts of Ragland, Grahamville, Woodville, Lamont and Maxon and in that part of the election precinct of Messac-Milan lying north-northwest of U.S. Highway 62.

(2) Second District: Graves County.

(3) Third District: That part of McCracken County not contained in the First and Fourth Districts.

(4) Fourth District: Livingston County; that part of Crittenden County not contained in the Twelfth District and that part of McCracken County contained in the election precincts of Reidland No. 1, Reidland No. 2, Clark River, Hovekamp, Oaks Station, Hendron No. 2, Florence Station, Harper, New Hope-Melber, Rolling Hills, Lone Oak No. 1 and Lone Oak No. 2, and that part of the election precinct of Messac-Milan lying south-southwest of U.S. Highway 62.

(5) Fifth District: Calloway County and that part of Trigg County contained in the Land Between the Lakes and in the voting precincts of Bethesda, Canton, West Cadiz, North Cadiz 1, North Cadiz 2, South Cadiz 1 and South Cadiz 2.

(6) Sixth District: Lyon and Marshall Counties and that part of Caldwell County contained in election precincts Princeton #1, Princeton #4, Princeton #5 and Harmony.

(7) Seventh District: Union County; that part of Henderson County not contained in the Eleventh

District; that part of Daviess County contained in the voting precincts of Pleasant Ridge, Utica, Snyder, West Louisville, Curdsville, St. Joseph, Rome, Sorgho, Masonville, Stanley, Northtown, Southtown, Fields, and Habit but excluding those parts of Northtown, Southtown and Fields precincts that are completely surrounded by one or more election precincts of the city of Owensboro.

(8) Eighth District: That part of Trigg County contained in Fort Campbell Military Reservation and in the voting precincts of Wallonia, Cerulean, Maggie and Caledonia-Roaring Spring; that part of Christian County not contained within the Ninth District.

(9) Ninth District: That part of Christian County contained in Fort Campbell Military Reservation and within the following voting precincts: Beverly, North Pembroke, Elmo, South Pembroke, Oak Grove, Lafayette, Sinking Fork, Consolation, West Crofton, East Crofton, Pilot Rock, Fearsville and Apex; that part of Hopkins County contained within the following voting precincts: East Dawson, Charleston and Ilsley.

(10) Tenth District: That part of Hopkins County not contained in the Ninth and Twelfth Districts.

(11) Eleventh District: Henderson County, except for the voting precincts of South Corydon, Niagara, Hebbardsville-Bluff City and South Robards.

(12) Twelfth District: Webster County; that part of Crittenden County contained in election precincts Rosebud, Shady Grove, Marion #5 and Marion #6; that part of Hopkins County contained in election precincts Ashbyburg, Hanson, East Hanson, Manitou and Nebo; that part of Caldwell County not contained in the Sixth District; and that part of McLean County not contained in the Fifteenth District.

(13) Thirteenth District: That part of Daviess County contained in the following election precincts: Owensboro #1, #2, #5, #8, #12, #13, #16, #21, #22, #23, #25, #26, #27, #28, #29, #30, #31, #33, #34, #35, #36, #37, #38, #39, #40, #41, #42, #43, #44 and #45 and those parts of the election precincts of Northtown, Southtown or Fields that are completely surrounded by one or more of the Owensboro precincts contained within the Thirteenth District.

(14) Fourteenth District: That part of Daviess County not contained in the Seventh District or in the Thirteenth District.

(15) Fifteenth District: Muhlenberg County and that part of McLean County contained in voting precincts: Sacramento, Livermore #3, Livermore #8 and Island.

(16) Sixteenth District: Todd and Logan Counties.

(17) Seventeenth District: Ohio and Butler Counties and that part of Hancock County contained in election precincts Boiling Chappell, Pellville, Chambers and Utility.

(18) Eighteenth District: Breckinridge County; that part of Hancock County not contained in the Seventeenth District; and that part of Meade County contained in election precincts Concordia, Flaherty, Guston, Payneville, Battletown and Wolfe Creek and in that part of Ekron election precinct lying west of a line formed by State Highway 144 and Rock Haven Road, and in that part of Woodland election precinct southeast of a line following Osborne Road northeastward to Hobbs-Reesor Road to State Highway 1238 and northeast on State Highway 1238 to the Woodland election precinct line.

(19) Nineteenth District: Edmonson and Grayson Counties; that part of Hardin County contained in voting precincts Upton, White Mills, Eastview and Meeting Creek.

(20) Twentieth District: That part of Warren County containing voting precincts Courthouse, Potter Gray, Nellums, Wayne Supply, Briarwood-Richland, Laurel and Broadway, Ogden College, Municipal Park, Shive-Kiel, 11th Street School, D and F Market, Greenwood, Carver-Harris, T. C. Cherry, Millers, 17th and Normal, Cabell Fire Station, Crestmoor, Millers #2, Carver Harris II, 11th Street Fire Station, Church Street, Watts Mill #2, Watts Mill and Mt. Victor.

(21) Twenty-first District: That part of Simpson County contained in the voting precincts of West Simpson, North Simpson and Prospect Hill and that part of Warren County not contained in the Twentieth District.

(22) Twenty-second District: Alien and Monroe Counties, and that part of Simpson County not contained in the Twenty-first District.

(23) Twenty-third District: Barren County and that part of Metcalfe County containing voting precincts Randolph-Wisdom No. 3, Knob Lick No. 4, Savoyard No. 5, Summer Shade No. 8 and Willow Shade-Beaumont No. 9.

(24) Twenty-fourth District: Hart County; Marion County; that part of Larue County contained in the election precincts of Buffalo, Buffalo East, Attila, Otter and Mt. Sherman.

(25) Twenty-fifth District: That part of Hardin County not contained in the Nineteenth, Twenty-sixth and Twenty-seventh Districts.

(26) Twenty-sixth District: That part of Hardin County contained in the voting precincts of Radcliff Northwest, Radcliff Southwest, Radcliff Southeast, Radcliff East, Radcliff North, Radcliff South, Radcliff West, Vine Grove East, Vine Grove West, Longview, Colesburg, that part of Yates precinct north of State Highway 144, and that part of the Fort Knox Military Reservation not included in the Twenty-seventh District; that part of Larue County not contained in the Twenty-fourth District.

(27) Twenty-seventh District: That part of Meade County not contained in the Eighteenth District; that part of Bullitt County contained in election precincts Cupio 13, Brooks 12 and Brooks 12A; that part of Hardin County contained in West Point election precinct and in that part of the Fort Knox Military Reservation whose southern boundary is Chaffee Avenue extended westward to the Hardin-Meade County line and eastward to Park Road; thence southward to Eleventh Avenue; thence eastward on Eleventh Avenue and a line extending due eastward to the Bullitt County-Hardin County line.

(28) Twenty-eighth District: That part of Jefferson County containing voting precincts C7, C8, C14, C31, C32, C33, C40, C43, C44, C45, C47, C53, C56, C57, C58, C64, C65, C66, C72, C73, C78, C79, C82, C90, C91, C98, C99, C101, C103, C107, C108, C109 of Commissioner's District C.

(29) Twenty-ninth District: That part of Jefferson County containing voting precincts C5, C6, C11, C16, C19, C21, C24, C30, C34, C39, C46, C50, C54, C55, C59, C61, C67, C69, C71, C74, C75, C80, C81, C85, C94, C97, C100, C112 of Commissioner's District C.

(30) Thirtieth District: That part of Jefferson County containing voting precinct 37 of the Third Ward of the city of Louisville, and voting precincts B10, B13, B18, B19, B21, B22, B24, B25, B31, B40, B42, B43, B48, B49, B54, B58, B64, B67, B70, B71, B72, B78, B84, B85, B87, B89 of Commissioner's District B.

(31) Thirty-first District: That part of Jefferson County containing voting precincts 16, 17, 19, 26, 29, 34, 35, 36, 38 and 39 of the Second Ward of the city of Louisville; and voting precincts A22, A35, A39, A63, A80, A81, A85, A86, A89, A91, A98, A99, A100, A102, A105, A114, A117, A118, A119, A123, A125, A127, A128, A135, A138, A139, A146 and A151 of Commissioner's District A.

(32) Thirty-second District: That part of Jefferson County containing voting precincts 4, 5, 6, 7, 8, 9, 10, 23A, 23B, 23, 24, 25, 27, 28, 29, 30 and 33 of the First Ward of the city of Louisville; voting precincts 1, 2, 3, 4, 5, 6, 7A, 7, 8, 10, 13, 15, 18, 20, 27, 32, 40 and 41 of the Second Ward of the city of Louisville; voting precincts 1 and 2 of the Third Ward of the city of Louisville; and voting precincts A4, A5, A6, A17, A18, A19, A24, A26, A27, A31, A32, A34, A46, A51, A64, A68, A71, A82, A83 and A94 of Commissioner's District A.

(33) Thirty-Third District: That part of Jefferson County containing voting precincts 23, 30 and 31 of the Second Ward of the city of Louisville; voting precincts A10, A11, A15, A16, A36, A53, A57, A70, A75, A76, A84, A87, A90, A92, A93, A95, A97, A101, A104, A112, A115, A120, A130, A132, A134, A137, A141 and A152 of Commissioner's District A.

(34) Thirty-fourth District: That part of Jefferson County containing voting precincts 12, 16, 19A and 19 of the First Ward of Louisville; voting precincts 9, 11, 12, 14, 21, 24, 28, and 33 of the Second Ward of the city of Louisville; voting precincts 3, 4, 7, 8, 9, 10, 11, 12, 13, 14, 15, 18, 19, 20, 21, 22, 23, 25, 26, 27, 28, 30, 31, 32, 33, 34, 35 and 36 of the Third Ward of the city of Louisville; and voting precincts 7 and 11 of the Fifth Ward of the city of Louisville; voting precincts A96 and A103 of Commissioner's District A; and voting precinct B16 of Commissioner's District B.

(35) Thirty-fifth District: That part of Jefferson County containing voting precincts 16, 17 and 29 of the Third Ward of the city of Louisville; 1, 5A, 5, 7, 8A, 8, 9A, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 22, 25, 26, 27, 28, 29, 30, 32 and 33 of the Fourth Ward of the city of Louisville; voting precincts 22, 26, 27, 28, 29 and 30 of the Fifth Ward of the city of Louisville; and voting precincts 10 and 13 of the Eighth Ward of the city of Louisville; and voting precincts B4, B8, B11, B12, B15 and B32 of Commissioner's District B.

(36) Thirty-sixth District: Garrard County; that part of Jessamine County contained in election precincts of East Nicholasville #1, East Nicholasville #2, West Nicholasville #1 and #2, Southeast Nicholasville #1 and #2, Southwest Nicholasville #1, #2 and #3, Sulphur Well, Little Hickman, and Bethel; and that part of Madison County contained in the [~~Lexington-Blue Grass Army Depot and in the~~] election precincts of Blue Lick, East Berea, Gay-Stephens, North Berea, South Berea, West Berea, Big Hill, Bobtown-Redlick, Clay, Brassfield-Bearwallow, *Middletown* and Poosey.

(37) Thirty-seventh District: That part of Jefferson County containing voting precincts 2, 21, 23 and 34 of the Fourth Ward of the city of Louisville; voting precincts 4, 6, 7, 8, 9, 10, 11, 14, 17, 18, 19, 20, 21, 22, 23, 25, 29 and 33 of the Sixth Ward of the city of Louisville; voting precincts 6, 8, and 9 of the Seventh Ward of the city of Louisville; voting precincts 11, 12, 14A, 14, 16A and 16 of the Eighth Ward of the city of Louisville; voting precincts B5 (not including that part of B5 located within the city limits of Louisville), B29, B75, B79, B82 and B92 of Commissioner's District B; and voting precincts C22 and C70 of Commissioner's District C.

(38) Thirty-eighth District: That part of Jefferson County containing voting precincts 12, 13, 15, 16, 24, 26A, 26, 27, 28, 30, 31 and 32 of the Sixth Ward of the city of Louisville; voting precincts 3A, 3, 5, 7, 10, 13, 15, 16, 18, 19, 20, 21, 22, 23, 24, 25 and 26 of the Seventh Ward of the city of Louisville; that part of voting precinct B5 of Commissioner's District B not contained within the Thirty-seventh District; and voting precincts C12, C18, C60, C87, C89 and C96 of Commissioner's District C.

(39) Thirty-ninth District: That part of Harlan County contained in the election precincts of Old Baxter, New Baxter, Pine Mountain, Bledsoe, Loyall-Old, Loyall-School and Rio Vista; that part of Perry County not contained in the Ninety-first District; that part of Owsley County not contained in the Ninetieth District.

(40) Fortieth District: That part of Jefferson County containing voting precincts 24 and 25 of the Fifth Ward of the city of Louisville; voting precinct 5 of the Sixth Ward of the city of Louisville; voting precincts 1, 2, 4, 11, 12, 14 and 17 of the Seventh Ward of the city of Louisville; voting precincts 7, 8A, 8, 9, 15A, 15, 17, 18A, 18, 19, 20 and 21, of the Eighth Ward of the city of Louisville; voting precincts 10, 11, 13, 14A, 14, 15, 16, 17 and 18 of the Ninth Ward of the city of Louisville; voting precincts 25A and 25 of the Tenth Ward of the city of Louisville; and voting precincts C9, C25, C27, C35, C51, C63 and C68 of Commissioner's District C.

(41) Forty-first District: That part of Jefferson County containing voting precincts 1, 2, 3, 11, 13, 14, 15, 17, 21, 31, 32 and 34 of the First Ward of the city of Louisville; voting precincts 2, 3, 4, 5, 6, 8, 10, 13, 15, 18, 19 and 31 of the Fifth Ward of the city of Louisville; and voting precincts 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 18, 20, 29 and 30 of the Tenth Ward of the city of Louisville.

(42) Forty-second District: That part of Jefferson County containing voting precincts 12, 16, 17, 20, 21, and 23 of the Fifth Ward of the city of Louisville; voting precincts 1, 2, 3, 4, 5, 6 and 22 of the Eighth Ward of the city of Louisville; voting precincts 1, 2, 4, 7A, 7, 8, 9, 19, 20 and 21 of the Ninth Ward of the city of Louisville; voting precincts 16A, 16, 17, 19, 21A, 21, 22, 23, 24, 26, 27, 28A and 28 of the Tenth Ward of the city of Louisville; voting precincts 14, 15, 16, 17, 18A, 18, 19, 20, 21A, and 21 of the Eleventh Ward of the city of Louisville; and voting precincts 24 and 25 of the Twelfth Ward of the city of Louisville.

(43) Forty-third District: That part of Jefferson County containing voting precincts 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13 and 22 of the Eleventh Ward of the city of Louisville; and voting precincts 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11A, 11, 12, 13, 14, 15, 16A, 16, 17, 18, 19, 20, 21, 22 and 23 of the Twelfth Ward of the city of Louisville.

(44) Forty-fourth District: That part of Jefferson County containing voting precincts 3, 5, 6 and 22 of the Ninth Ward of the city of Louisville; and voting precincts C1, C2, C3, C4, C10, C13, C15, C17, C20, C26, C28, C29, C36, C37, C38, C41, C42, C48, C49, C52, C62, C76, C77, C83, C84, C86, C88, C92, C93, C95, C104, C105, C106, C110 and C111 of Commissioner's District C.

(45) Forty-fifth District: That part of Jefferson County containing voting precincts B1, B2, B3, B6, B7, B9, B17, B23, B27, B28, B30, B39, B45, B55, B56, B59, B63, B66, B73, B74, B76, B81, B83, B90, B91 and B94 of Commissioner's District B; and voting precincts C23 and C102 of Commissioner's District C.

(46) Forty-sixth District: That part of Jefferson County containing voting precinct A88 of Commissioner's District A; and voting precincts B14, B20, B26, B33, B34, B35, B36, B37, B38, B41, B44, B46, B47, B50, B51, B52, B53, B57, B60, B61, B62, B65, B68, B69, B77, B80, B86, B88 and B93 of Commissioner's District B.

(47) Forty-seventh District: That part of Jefferson County containing voting precincts A8, A12, A13, A14, A20, A21, A23, A25, A28, A33, A37, A38, A41, A42, A43, A44, A45, A50, A58, A65, A69, A72, A74, A77, A106, A107, A108, A109, A110, A124, A126, A129, A133, A136, A147, A149 and A153 of Commissioner's District A.

(48) Forty-eighth District: That part of Jefferson County containing voting precincts 20 and 22 of the First Ward of the city of Louisville; and voting precincts A1, A2, A3, A7, A9, A29, A30, A40, A47, A48, A49, A52, A54, A55, A56, A59, A60, A61, A62, A66, A67, A73, A78, A79, A111, A113, A116, A121, A122, A131, A140, A142, A143, A144, A145, A148 and A150 of Commissioner's District A.

(49) Forty-ninth District: That part of Bullitt County not contained in the Twenty-seventh District.

(50) Fiftieth District: Nelson and Washington Counties.

(51) Fifty-first District: Green and Taylor Counties, and that part of Metcalfe County not contained in the Twenty-third District.

(52) Fifty-second District: Adair and Casey Counties and that part of Russell County contained in the election precincts of Webbs, Irvins, Esto, Royville, City Hall, Fairgrounds, Eli and Rows.

(53) Fifty-third District: Wayne, Clinton and Cumberland Counties; that part of Russell County not contained within the Fifty-second and Eighty-third Districts.

(54) Fifty-fourth District: Boyle County; that part of Lincoln County contained in the Census County Divisions of Hustonville and Stanford and in Census Enumeration Districts 564 and 565.

(55) Fifty-fifth District: Mercer, Spencer and Anderson Counties.

(56) Fifty-sixth District: Woodford County; that part of Franklin County contained in election precincts Forks of Elkhorn, Switzer, Peaks Mill, Owenton Road and Swallowfield; that part of Jessamine County not contained in the Thirty-sixth District.

(57) Fifty-seventh District: That part of Franklin County not contained in the Fifty-sixth District.

(58) Fifty-eighth District: Henry and Shelby Counties.

(59) Fifty-ninth District: Oldham and Trimble Counties.

(60) Sixtieth District: That part of Boone County not contained in the Sixty-sixth District.

(61) Sixty-first District: Carroll, Gallatin, Grant and Owen Counties.

(62) Sixty-second District: Harrison and Scott Counties.

(63) Sixty-third District: That part of Kenton County containing the following voting precincts: Crescent Springs 1 and 2; Crestview Hills; Edgewood 1, 2, 3, 4, 5 and 6; Fort Mitchell 1, 2, 3, 4, 5 and 6; Fort Wright 1, 2, 3, 4 and 5; Lakeside Park 1, 2 and 3; Park Hills 1, 2 and 3; Richardson; and *that part of Sandfortown Precinct west of the L & N Railroad track and west of Madison Pike.*

(64) Sixty-fourth District: That part of Kenton County containing the following voting precincts: Bracht, Cherokee, Covington 26, 27, 29, 30 and 43, Decoursey, Independence 1, 2 and 3, Morningview, Nicholson, Oakridge, Piner, *that part of Sandfortown not contained in the Sixty-third District*, Taylor Mill 1 and 2, Visalia, Whites Tower, and Winston Park; and that part of Pendleton County contained in voting

precinct Grassy Creek.

(65) Sixty-fifth District: That part of Kenton County containing the following voting precincts: Covington 7, 10, 11, 12, 13, 14, 15, 17, 18, 19, 20, 21, 23, 24, 25, 31, 33, 34, and 42; and that part of Kenton County contained within the city of Ludlow and the city [~~precinct~~] of Bromley.

(66) Sixty-sixth District: That part of Boone County containing the following voting precincts: Devon 1, 1A and 2; Florence 1; that part of Florence 3 bounded as follows: beginning at the Boone County line and Old Dixie Highway, then west with Old Dixie Highway to State Highway 1017, then north on State Highway 1017 to Sebree Drive, then west on Sebree Drive to Jortha Avenue, then north on Jortha Avenue to Lloyd, then east on Lloyd and Drexel Avenue to Oakwood Drive, then northeast on Oakwood Drive and High Ridge Avenue to Florence city limits, then east with city limits of Florence to Boone County line, then to point of beginning; Florence 6; that part of Kenton County containing the following voting precincts: *that part of Bromley precinct not contained in Ludlow city and in Bromley city*, Elsmere 1, 2, 3 and 4, Erlanger 1, 2, 3, 4, 5, 6, 7, 8 and 9, Villa Hills 1 and 2.

(67) Sixty-seventh District: That part of Campbell County containing all of the voting precincts in the city of Newport; that part of Campbell County containing the following voting precincts: Southgate A, B and C, Wilder and Woodlawn; that part of Kenton County containing the following voting precincts: Covington 1, 3, 6, 35, 36, 39, 40, and 41.

(68) Sixty-eighth District: That part of Campbell County containing the following voting precincts Bellevue A, B, C, D, E, F, G, H and I; Dayton A, B, C, D, E, F, and G; Fort Thomas A, B, C, D, E, G, L and P, Brent, Crestview, Silver Grove, Hayfield, Carthage, Camp Springs, California, Mentor and Gubser's Mill and Melbourne; Pendleton County precincts Bonar, Sandsuck, and Falmouth 3; and Bracken County precincts Foster, Johnsville, Augusta West and Augusta East.

(69) Sixty-ninth District: That part of Campbell County not contained in the Sixty-seventh and Sixty-eighth Districts; that part of Pendleton County not contained in the Sixty-fourth District and in the Sixty-eighth District.

(70) Seventieth District: Mason, Fleming and Robertson Counties; that part of Bracken County not contained in the Sixty-eighth District.

(71) Seventy-first District: Morgan and Rowan Counties; that part of Lawrence County contained in election precincts Martha, Blaine, Brushey and Meades Branch; and that part of Lewis County contained in the election precincts of Concord, Mowers, Tollesboro, *Petersville*, and Burtonsville [~~and in that part of the election precinct of Petersville southwest of a line commencing at the intersection of State Highway 377 at the Rowan-Lewis County line; thence following the centerline of Highway 377 to the Handy Fork Road; thence with the centerline of Handy Fork Road to its termination; thence with a straight line from the end of the Handy Fork Road to the Sargeant Branch Road; thence with the centerline of the Sargeant Branch Road to the intersection of State Highway 509; thence with the centerline of State Highway 509 northeast to Petersville and the intersection of Highway 344; thence northwest with the centerline of Highway 344 to the Burtonville Precinct boundary~~].

(72) Seventy-second District: Bourbon County and that part of Fayette County not contained in the Seventy-fifth District, the Seventy-sixth, Seventy-seventh, Seventy-eighth and Seventy-ninth Districts.

(73) Seventy-third District: Clark and that part of Powell County west of a line extending from the Montgomery County line south with the centerline of State Highway 213 to State Highway 11 and 15, then westward with the center of State Highway 11 and 15 to the western city limits of Stanton, then eastward around the southern city limits of Stanton to the Mountain Parkway, then eastward with the Mountain Parkway to State Highway 11 and 15, then southward with State Highway 11 and 15 to Cat Creek-High Rock Road, then south with said road and an unnamed branch of Cat Creek to Knowlton Ridge Road, then southward with Knowlton Ridge Road to State Highway 213, then southward with State Highway 213 to the Estill County line.

(74) Seventy-fourth District: Bath, Nicholas and Montgomery Counties.

(75) Seventy-fifth District: That part of Fayette County contained within the following election precincts: Davidson Court, Fayette Park, Hampton Court, Preston Inn, West Main, Church, Deerfield, Fair Grounds, Goodrich, Merino, Open Gates, Picadome, Rodes Addition, Rosemont, Towers, Alabama,

Ashland Avenue, Aylesford, Bell Place, Bunker, Campsie, Clifton, College View, Hollywood, Lawrence, Mt. Vernon, and Woodland.

(76) Seventy-sixth District: That part of Fayette County contained within the following election precincts: Blue Acres, Marlboro, Radcliffe, *Aspendale-Bluegrass* [~~Aspendale~~, ~~Bluegrass~~], Breckenridge, Bryan Station, Castlewood, Crawford, Deep Springs, Dixie, Eastland, Emerson, Helm, Henry Clay, Hermitage, Idle Hour, Kenwick, Liberty Heights, Loudon, Northern, *Ohio-Walnut* [~~Ohio~~], Rookwood, Victory, [~~Walnut Street~~], Walton, Warfield Place, Augusta, Greenleaf and Delaware.

(77) Seventy-seventh District: That part of Fayette County contained within the following election precincts: Alexandria, Barker, Cardinal Valley, *Douglas-Washington* [~~Douglas~~], Evans, Fairlawn, Garden Springs, Gibson Park, Holiday Hills, [~~Imperial~~], Julius Marks, Keys, Lane Allen, Larkspur, Meadowthorpe, Oxford, Pine Meadows, St. Martins, Skycrest, Terrace View, Turfland, Versailles Road [~~Pike~~], Viley Heights, [~~Washington~~], Wolf Run, Barkley, Lafayette, Clays Mill, Hill-n-Dale, Indian Hills, Longview, Pershing, Southview and *Arlington-Imperial* [~~Arlington~~].

(78) Seventy-eighth District: That part of Fayette County contained within the following election precincts: Beaumont, Meridian, The Colony, Airport North, Airport South, Blueberry Hills South, *Blueberry Hills West*, Brigadoon, Brookhaven, Camelot, Glendover, Hinda Heights, Keithshire, Lansdowne, Leawood, McDowell East, *McDowell West*, Malabu, Montavesta East, *Montavesta West*, Monticello, Redding Road, Shadeland, Shady Lane, Stone, Stonewall, Wem, Zandale, Robinwood, South Point, *South Point North*, Tudor, Bayswater, Kirklevington East, *Kirklevington West*, Stoneybrook, Surfside, and Plantation.

(79) Seventy-ninth District: That part of the county of Fayette contained within the following election precincts: Fairway, Gainesway, Lakeview North, *Lakeview South*, Mt. Tabor, Merrick, Richmond Road, Shrine, Southeastern Hills, Tates Creek, Walnut Hill, Delong, *Delong East*, River Park, Blairmore, Edgewater, Ascot, Park Hills North, *Park Hills South*, Cove Lake North, *Cove Lake South*, Chevy Chase, Chilesburg, Duke, Ellerslie, Fontaine, Woodspoint, Alsab, and Ridgeway.

(80) Eightieth District: Rockcastle County; that part of Lincoln County not contained in the Fifty-fourth District; that part of McCreary County not contained in the Eighty-second district; and that part of Pulaski County contained within the following voting precincts: Eubank 25, Estesburg 26, Hazeldell 29, Good Hope 28, Dallas, Mayfield, Mt. Victory, Sloans Valley, Gamblin, Buncombe, and Catron 31.

(81) Eighty-first District: That part of Madison County not contained in the Thirty-sixth District.

(82) Eighty-second District: That part of Whitley County not contained in the Eighty-seventh District; that part of McCreary County contained within Census Enumeration Districts 182, 183, 185 and 186.

(83) Eighty-third District: That part of Pulaski County not contained in the Eightieth District; and that part of Russell County contained in the election precinct of Jabez.

(84) Eighty-fourth District: Estill, Lee and Menifee Counties; that part of Powell County not contained in the Seventy-third District; and that part of Jackson County not contained in the Ninetieth District.

(85) Eighty-fifth District: Laurel County.

(86) Eighty-sixth District: Knox County; that part of Clay County contained in voting precincts Harts Branch, Horse Creek, Manchester, Garrard and Whites Branch.

(87) Eighty-seventh District: Bell County and that part of Whitley County southeast of a line beginning at the Tennessee State line, following the Pine Mountain Divide northeastward, then westward with the Vanderpool Mountain Divide to the Rose Creek-Seng Branch Divide, then northward with said divide to the Gatliff Lookout Road, then with said road to State Highway 904, then eastward with State Highway 904 to State Highway 1809, then northward with State Highway 1809 to the Knox County line.

(88) Eighty-eighth District: That part of Harlan County not contained in the Thirty-ninth District.

(89) Eighty-ninth District: Breathitt, Wolfe and Magoffin Counties.

(90) Ninetieth District: Leslie County; that part of Jackson County contained in Census Enumeration Districts 81, 82, 83 and 76U; that part of Clay County not contained in the Eighty-sixth District; that part of Owsley County contained in election precincts Island Creek, Sturgeon and Elk Lick.

(91) Ninety-first District: That part of Perry County contained in the election precincts of Whitaker, Little Leatherwood, Cornettsville, Fusonia, Vicco, Happy, Jeff, Farmertown and Christopher; that part of Pike County south and west of a line beginning at the Letcher County line, then northeast with the Marshall Branch-Booker Branch Divide and the Orchard Branch-Blaze Branch Divide to Gale Road, then with the Gale Road to its intersection with U.S. Highway 23, then in a straight line eastwardly to Herman Siding Station, then south-southeast with northern boundary of Dorton Census County Division to the Virginia state line and that part of Letcher County not contained in the Ninety-second District.

(92) Ninety-second District: Knott County; that part of Letcher County contained in the voting precincts of Ison, Colson, Marion, Blackey, Doty and Baker; that part of Floyd County contained in the voting precincts of Rock Fork #37, Wayland #18, Lackey #17, Bosco #15, Beechgrove #41, Jack Allen, Middle Creek #8, Maytown, Rough and Tough #12, Abbott #35, and Garrett #16.

(93) Ninety-third District: That part of Pike County not contained in the Ninety-first and Ninety-fourth Districts.

(94) Ninety-fourth District: That part of Pike County contained in the Census County Divisions of Pikeville, Mayflower, Raccoon, Sidney and South Williamson and Census Enumeration Districts 505 and 506.

(95) Ninety-fifth District: That part of Floyd County not contained in the Ninety-second District.

(96) Ninety-sixth District: Carter County; that part of Lewis County not contained in the Seventy-first District; that part of Greenup County contained in Census Enumeration District 831.

(97) Ninety-seventh District: Johnson and Martin Counties.

(98) Ninety-eighth District: That part of Greenup County not contained in the Ninety-sixth and One hundredth Districts.

(99) Ninety-ninth District: Elliott County; that part of Lawrence County not contained in the Seventy-first District; that part of Boyd County containing the following voting precincts: Court House, City Building, Argo, Hampton, England Hill, Durbin, East Fork, Cannonsburg, Princess, Garner, Hoods Creek, Fairview, Buckley #1, Buckley #2, Westwood, Fannin, Ashland Oil and Greenhill.

(100) One hundredth District: That part of Boyd County not contained in the Ninety-ninth District and that part of Greenup County contained in the city of Bellefonte.

Section 32. KRS 6.041 is amended to read as follows:

(1) Any reference in KRS 6.011 and 6.031 to a census unit, city, county, road, highway or stream means that census unit, city, county, road, highway or stream as its boundaries or location existed on January 1, 1980.

(2) Any reference to a ward, commissioner's district or precinct means that ward, commissioner's district or precinct as its boundaries existed on July 15, 1980, and except that for purposes of KRS 6.031:

(a) Any reference to the Madison County election precincts of Middletown and Menales Todd shall mean those precincts as their boundaries existed on January 1, 1984; and

(b) Any references to Fayette County election precincts shall mean those precincts as their boundaries existed on January 1, 1984.

Section 33. KRS 83A.170 is amended to read as follows:

(1) In any city which has under the provisions of KRS 83A.050 required nonpartisan city elections, or in any city of the second class operating under the city manager form of government pursuant to KRS

83A.150, no person shall be elected to city office except as provided in this section.

(2) No person shall be elected to city office without being nominated in the manner provided in this section at a nonpartisan primary election to be held at the time prescribed by law for primary elections generally. Nonpartisan primary elections shall be conducted by the same officers, chosen and acting in the same manner, with the same rights and duties as in regular elections.

(3) Each applicant for nomination *in a city of the first, second and third class shall, by at least the last date prescribed by the election law generally for filing notification and declaration forms with the county clerk, or in a city of the fifth and sixth class, shall by at least fifty-five (55) days before the primary election,* file with the county clerk a petition signed by at least one percent (1%) of the registered voters in the city or twenty (20) voters, whichever is less. Each voter may sign a slated petition up to the number of offices to be filled for a particular position or may sign individual petitions equal to the number of offices to be filled. [;] If a voter signs petitions for more candidates than he is authorized then he shall be counted as a petitioner for the candidate whose petition is filed first. The petition shall be in the following form:

“We the undersigned, qualified voters of the City of _____ request that the name of _____ be placed before the voters of the city as that of an applicant for nomination for the office of _____ at the primary election to be held in our city on the *date prescribed by law for primary elections generally* [~~fourth Tuesday in August~~ ; ____]. We know the applicant to be a qualified voter of the city and a person of good character, and he is, in our judgment, qualified for the duties _____.”

The petition shall be verified by the affidavit of some person as to the genuineness of signatures and addresses of the signers. No voter shall sign more than one (1) petition with reference to each applicant. If any voter signs more than one (1) petition of an applicant, the name of that voter shall not be counted as valid on any petition.

(4) *The county clerk shall examine the petition of each candidate to determine whether it is regular on its face. If there is an error, the county clerk shall notify the candidate by certified mail within twenty-four (24) hours of filing.*

(5) Immediately upon expiration of the time for filing petitions, the county clerk shall have published in accordance with KRS Chapter 424 the names of the applicants as they will appear before the voters at the primary.

(6)[(5)] Subsection (5)[(4)] of this section shall not apply if it appears, immediately upon expiration of the time for filing petitions, that there are not more than two (2) applicants for nomination for each city office to be filled, or, when the nominations are for city legislative body members in cities electing legislative body members at large, and there are no more than twice the number of applicants for nomination for the number of offices to be filled. In that case, the applicants for nomination shall thereby be nominated and no primary election shall be held for that office.

(7) *The ballot position of a candidate shall not be changed after the ballot position has been designated by the county clerk.*

(8) *If before the time of certification provided in the election law generally, any candidate whose petition has been filed in the office of the county clerk, dies or notifies the county clerk in writing, signed and properly notarized, that he will not accept the nomination, the county clerk shall not certify his name.*

(9) *If before the ballots are printed, any candidate whose petition has been filed in the office of the county clerk dies or notifies the clerk in writing, signed and properly notarized, that he will not accept the nomination, the clerk shall not cause his name to be printed on the ballot.*

(10) *If after the ballots are printed, any candidate whose name appears thereon shall die, the county clerk shall cause his name to be blocked out or obliterated from the ballot. The clerk shall not knowingly allow the name of a deceased person to appear on the ballot.*

(11)(6) Names of applicants for each nomination shall be placed before the voters of the city. The voters shall be instructed to vote for one candidate, except that they shall be instructed to vote for the number of legislative body members to be elected in cities nominating legislative body members at-large. No party designation or emblem of any kind, nor any sign indicating any applicant's political belief or party affiliation shall be used.

(12)(7) Persons qualified to vote at a regular election are qualified to vote at a nonpartisan primary election and the law applicable to challenges made at a regular election is applicable to challenges made at a nonpartisan primary election.

(13)(8) Votes shall be counted as provided in general election laws and the result shall be published as provided in KRS Chapter 424.

(14)(9) The two (2) applicants receiving the highest number of votes for nomination for each city office shall be nominated, or where the nominations are for city legislative body members in cities electing legislative body members at large, there shall be nominated the number of applicants receiving the highest number of votes equal to twice the number of offices to be filled.

(15) *The ballot position of a candidate shall not be changed after the ballot position has been designated by the county clerk.*

(16)(10) At the regular election following a nonpartisan primary election, the names of the successful nominees shall be placed before the voters.

(17)(11) The nominee receiving the greater number of votes cast for each city office shall be elected.

(18)(12) General election law prescribing duties of county clerks and other public officers in the conduct of elections shall be applicable in all respects to nonpartisan city elections, except no election officer or other person within a polling place shall tell or indicate to a voter, by word of mouth or otherwise, the political affiliation of any candidate for city office.

Section 34. The following KRS sections are repealed:

116.127 Purge in counties containing a city of the first class biennially -- Procedure.

117.405 Definitions.

117.415 Powers and duties of commission as to voting machines.

117.425 Financing of voting machine projects.

117.435 Procedure for acquiring machines.

117.445 Negotiable and tax-free character of bonds -- Source of payment.

117.455 Ways in which money received may be used.

117.465 Sinking fund reserve.

117.475 Separate bond issue -- Procedure for two or more counties.

117.485 Action after termination of lease.

117.495 One or more separate bond issues for same county.

117.505 Bondholder's right to proceed.

117.515 Refunding bonds.

117.525 Additional and alternate character of provisions as to acquisition of voting machines.

Section 35. Whereas certain filing deadlines and election procedures are established to begin with the 1985 primary and general election; Sections 1, 11, 18 and 21 of this Act shall become effective January 1, 1985.

Section 36. Whereas it would be advantageous for legislative and judicial districts to be effective before, rather than after, the primary election; and whereas it is imperative that a new filing date be established immediately in primaries in cities of the fifth and sixth classes, an emergency is declared to exist, and Sections 2, 31, 32 and 33 of this Act shall become effective upon its passage and approval by the Governor.

Approved April 3, 1984

CHAPTER 186

(S.B. 157)

AN ACT relating to reorganization.

Be it enacted by the General Assembly of the Commonwealth of Kentucky:

SECTION 1. A NEW SECTION OF KRS CHAPTER 11 IS CREATED TO READ AS FOLLOWS:

(1) *There is created an agency of state government known as the office of the special assistant to the governor for budget and management. The office shall be attached for administrative purposes to the office of the secretary of the cabinet.*

(2) *The office shall include the following major organizational units:*

(a) *The office of special assistant to the governor for budget and management, headed by the special assistant to the governor for budget and management. The special assistant shall be appointed by the governor pursuant to KRS 11.040 and shall serve, under direction of the governor and secretary of the cabinet, as state budget director and secretary of the state planning committee. The office shall include such principal assistants and supporting personnel appointed pursuant to KRS Chapter 12 as may be necessary to carry out the functions of the office. The office shall have such duties, rights and responsibilities as are necessary to perform, without being limited to, the following functions:*

1. *Functions relative to the preparation, administration, and evaluation of the executive budget as provided in KRS Chapters 45 and 48 and in other laws, including but not limited to, capital construction budgeting, evaluation of state programs, program monitoring, financial and policy analysis and issue review, and executive policy implementation and compliance;*

2. *Continuous evaluation of statewide management and administrative procedures and practices, including but not limited to, organizational analysis and review, economic forecasting, technical assistance to state agencies, forms control, and special analytic studies as directed by the secretary of the cabinet or the governor; and*

3. *Staff planning functions of the state planning committee and evaluation of statewide management and administrative practices and procedures.*

(b) *Governor's office for policy and management, which shall be headed by an executive director who shall be appointed by the governor pursuant to KRS 12.040. The executive director shall report to the secretary of the cabinet through the special assistant to the governor for budget and management. The executive director shall maintain staff employed pursuant to KRS Chapter 18A sufficient to carry out the*